

CITATION: Jason Beach v. Debra Gaice White, 2015 ONSC 3450
COURT FILE NO.: 08-CV-348264 PD1
DATE: 20150601

ONTARIO
SUPERIOR COURT OF JUSTICE

BETWEEN:

JASON BEACH

Plaintiff

– and –

DEBRA GAICE WHITE

Defendant

)
)
) *Jason Beach*, in person
)
)

) *Michael W. Smith*, for the Defendant
)
)
)
)
)

) **HEARD:** September 22, 23, 24, 25 and
) 26, 2014
)

STEWART J.

Nature of the Action

[1] The Plaintiff Jason Beach (“Beach”) has brought this action against the Defendant Debra Gaice White (“White”), claiming damages for injuries said to have been sustained by him as a result of a motor vehicle accident on August 18, 2006.

Facts

[2] White’s counsel moved successfully at the outset of trial for an order striking the jury notice delivered in this action. As a result, the trial proceeded before me without a jury.

[3] On August 18, 2006, Beach was travelling eastbound on Taunton Road East in Oshawa, Ontario. The vehicle driven by Beach was stopped at a traffic signal when it was struck from behind by the vehicle driven by White.

[4] Beach claims that he has sustained serious and permanent injuries as a result of this collision as well as out-of-pocket and other expenses.

[5] White admits liability for the accident. However, she argues that Beach has suffered no compensable damages as a result of the accident. If any such injuries were sustained by him, White argues that they do not meet the statutory threshold imposed by the *Insurance Act*, R.S.O., c. I.8, as amended, as Beach has not died, nor has he suffered permanent, serious disfigurement nor suffered a permanent serious impairment of an important physical, mental or psychological function.

[6] Beach is 39 years old. He has a business degree or diploma. In the past he has held a variety of jobs, working in his family jewellery appraisal and adjusting business, as well as for a security firm, for a transport company unloading trucks and at various other jobs. When this accident happened, he had been unemployed for a considerable time and was living on social assistance.

[7] Beach's description of the accident is rather remarkable. He describes himself as being in his car, stopped at a traffic signal, when he was struck by White's vehicle which he described as having "to be doing 120 kilometers per hour" prior to impact.

[8] Beach was taken to hospital and assessed by medical staff. No concussion or broken bones or other serious injuries were noted. X-Rays were taken and he was released from hospital the same day.

[9] Beach filed a number of medical reports and other medical records in an effort to substantiate his claims of having sustained injuries in the accident. None of these were objected to by counsel for White.

[10] Beach tendered a report dated June 25, 2007 prepared by Dr. Kevin Green of CPM Centres for Park Management to whom Beach had been referred for consultation by his family doctor.

[11] Records of post medical investigations carried out after the motor vehicle accident as reviewed by Dr. Green included a bone scan, nerve conduction studies and MRI. He noted that no relevant abnormalities were found other than some mild degenerative disc disease.

[12] In his review of Beach's medical history, Dr. Green noted that Beach had sustained a work-related injury in March 2004 and had launched a resulting WSIB claim in which he had asserted that he was unable to work. That claim was reportedly dismissed.

[13] Dr. Green also noted that a questionnaire administered in his office to Beach which was designed to screen for patients who over-exaggerate their symptoms revealed a high score.

[14] Dr. Green expressed in his report the finding that Beach's reported symptoms are "way out of proportion" to his own findings on investigation and examination. He suggested that a series of nerve block treatments might help Beach deal with his pain complaints.

[15] Beach underwent the nerve block treatments and has taken a variety of medications for his complaints and pain. He currently maintains that he cannot work, cannot perform his usual pre-accident activities, is severely disabled and that his life has been ruined because of this accident.

[16] Beach has also been seen by mental health professionals to consider whether a psychiatric condition plays a part in his symptomatology. Nothing was found by them that was considered to have been caused by the accident.

[17] Beach has also undergone investigation and evaluation by an orthopaedic surgeon and a neurologist. No medical opinion has been advanced to substantiate any significant injuries caused by the collision other than an initial soft-tissue injury that appears to have resolved quickly.

[18] Dr. Cameron Paitich, an orthopaedic surgeon, provided evidence to the Court concerning his findings and opinion as a result of his examination of Beach on May 23, 2013 at the request of counsel for White. Dr. Paitich has been an orthopaedic specialist since 1993, and practises at present in Brampton with privileges at the William Osler Hospital.

[19] Dr. Paitich reviewed all available medical records on Beach and conducted his own physical examination of him. He found Beach's presentation to be rife with "non-organic features", and could find no physical source of his reported pain and other expressed symptoms, other than to postulate that Beach may have Schoerman's disease, a hereditary genetic condition.

[20] Dr. Paitich explained that the annular tear found in earlier radiographic investigation commonly occurs spontaneously, is unlikely to have been caused by the collision, and does not account for Beach's current complaints in any event.

[21] In Dr. Paitich's opinion, Beach sustained a sprain of the soft tissue in his back and neck in the motor vehicle accident. This injury should not prevent Beach from working or participating in any of his usual activities. He expressed the view that there was no apparent anatomical or physical reason for Beach's complaints and presentation which are probably the product of emotional and behavioural factors unrelated to the collision.

[22] Some of the medical reports adduced at trial, including several of those tendered by Beach, were said by Beach to have been fraudulently prepared and relate to attendances with physicians that he says never occurred. I find Beach's evidence and assertions to that effect to be wholly incredible and unreliable. In my view, all records and reports entered into evidence were authored by the medical personnel so named after having conducted an appropriate attendance and examination. Further, their contents were not influenced by any improper motive or falsely concocted.

[23] I can see no requisite medical opinion to support Beach's claims that he has sustained any serious, permanent injury. His claim must fail on that ground alone.

[24] Further, on all the evidence, his action must fail as falling short of the statutory threshold imposed by the *Insurance Act*. He has also failed to demonstrate any causal link between his past or present complaints and the motor vehicle accident.

[25] Similarly, Beach has provided no credible evidence of any actual income loss or out-of-pocket expenses incurred by him as a result of this motor vehicle accident.

[26] As a result, Beach has failed to prove any basis for his claim for damages as the law requires.

Conclusion

[27] For these reasons, the action is dismissed.

Costs

[28] If the Defendant is intent upon pursuing an award of costs in this unfortunate case, written submissions may be delivered by them within 30 days of today's date, and by Beach within 30 days thereafter.

STEWART J.

Released: June 1, 2015

CITATION: Jason Beach v. Debra Gaice White, 2015 ONSC 3450
COURT FILE NO.: 08-CV-348264 PD1
DATE: 20150601

ONTARIO
SUPERIOR COURT OF JUSTICE

BETWEEN:

JASON BEACH

Plaintiff

And –

DEBRA GAICE WHITE

Defendant

REASONS FOR JUDGMENT

STEWART J.

Released: June 1, 2015